LEGAL PROCED

Forensic Medicine | 3rd Year MBBS

Hi Sammy!
Legal procedures = guaranteed LAQ topic!
Let's nail it!

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Inquest — Types + Procedures

Inquest = inquiry into cause of unnatural death. Know all 3 types!

INQUEST

"An inquiry into the cause of unnatural, sudden, suspicious, or unexplained death." — Reddy

Types of Inquest — Comparison Table

Feature	Police Inquest	Magistrate Inquest
Authority	Police officer (SHO)	Executive/Judicial Magistrate
Section	CrPC Sec 174	CrPC Sec 176
When done	All unnatural deaths	Death in custody, dowry death <7yr
Body exam	External only	Can order full autopsy
Purpose	Cause & circumstances	Detailed judicial inquiry
Scope	Limited (no dissection)	Wide (can summon witnesses)
Report to	District Magistrate	State Government

Coroner's Inquest

- Abolished in India (existed in Bombay, Calcutta, Madras)
- Still exists in UK, USA, Australia
- Coroner = judicial officer who investigates unnatural death with jury

CrPC Section 174 — Police Inquest Key Points

Who:	Officer in-charge of police station (not below Sub-Inspector)
Cases:	Suicide, killed by another, animal, machinery, accident, dowry death
Procedure:	Proceeds to place, examines body, prepares inquest report
Body:	Only external examination allowed; NO dissection by police
Dowry:	If woman dies within 7 years of marriage -> forwarded to Magistrate

Remember!
Police = 174 (external only) | Magistrate = 176 (custody/dowry deaths)

Dying declaration is
asked in EVERY exam!
Sec 32 IEA is key!

Dying Declaration (Sec 32 Indian Evidence Act)

Statement made by a person who is dead or cannot be found,
as to cause of death or circumstances of transaction resulting in death.

- Can be oral, written, or by gestures (signs/nods)
- No oath required; need NOT be made before Magistrate
- Person need NOT die for it to be valid (unlike English law)
- Recorded preferably by Magistrate (strongest evidentiary value)
- Doctor certifies patient is fit to make statement (compos mentis)
- Can be sole basis of conviction without corroboration

Types of Consent in Medical Practice

Type	Details
Implied	Patient comes to OPD, extends arm for BP check — no verbal/written needed
Express	Oral or written; written = best for medicolegal purposes
Informed	Doctor explains procedure, risks, alternatives; patient decides freely
Proxy/Surrogate	Given by guardian for minor (<12 yr) or unconscious patient
Blanket	General consent for all procedures — NOT valid legally
Loco parentis	Teacher/warden gives consent in place of absent parent

★ Age of Consent for Medical/Surgical Procedures:

IPC: 12 years (general) | MTP Act: 18 years (no guardian needed for unmarried)
Emergency: No consent needed (Sec 92 IPC — good faith, for patient's benefit)

Therapeutic Privilege

Doctor withholds information if disclosure would harm the patient.

Exception to informed consent. Must be used judiciously. e.g., terminal cancer diagnosis withheld if patient may attempt suicide.

Bolam test + 4 Ds of negligence = must know for theory AND viva!

MEDICAL NEGLIGENCE

"Breach of duty of care by a medical professional resulting in harm/damage to the patient." — Reddy

The 4 D's of Medical Negligence

D	Element	Explanation
D1	Duty	Doctor owed a duty of care to the patient
D2	Dereliction	Doctor breached/failed that duty (substandard care)
D3	Direct cause	The breach directly caused harm (proximate cause)
D4	Damage	Patient suffered actual damage/injury/loss

Bolam Test (1957, UK — applies in India)

"A doctor is NOT negligent if he acts in accordance with a practice accepted as proper by a responsible body of medical men skilled in that particular art." — McNair J in Bolam v Friern Hospital

Indian cases: Jacob Mathew v State of Punjab (2005), Kusum Sharma v Batra Hospital

Consumer Protection Act + Doctors

Point	Detail
CPA applicability	Medical services = 'service' under CPA 2019
Landmark case	Indian Medical Assoc v VP Shantha (1995)
Exception	Free treatment at govt hospital = NOT under CPA
Compensation forums	District/State/National Consumer Commission
Criminal negligence	IPC 304A (death by rash/negligent act) = 2yr jail

Important Legal Doctrines

Doctrine	Meaning
Res ipsa loquitur	The thing speaks for itself — negligence is obvious (e.g., sponge left)
Respondeat superior	Master liable for servant's act (hospital for doctor's negligence)
Contributory negligence	Patient also contributed to harm (reduces compensation)
Novus actus	New intervening act breaks chain of causation

Legal procedures =
easy scoring topic!
You've GOT this Sammy!

Most Repeated LAQs (10–12 marks)

- 1. Define inquest. Compare police inquest vs magistrate inquest
- 2. What is dying declaration? Discuss its medicolegal importance (Sec 32 IEA)
- 3. Define medical negligence. Explain the Bolam test with Indian case law
- 4. Discuss types of consent in medical practice with legal provisions
- 5. Write about Consumer Protection Act and its applicability to doctors

Most Repeated SAQs (5–6 marks)

- 1. Dying declaration — who can record, validity, evidentiary value
- 2. Informed consent vs implied consent
- 3. Therapeutic privilege — definition and examples
- 4. Res ipsa loquitur with medicolegal example
- 5. CrPC 174 vs CrPC 176 (police vs magistrate inquest)
- 6. 4 D's of medical negligence

One-Liner Associations (MCQ/Viva Gold)

Question	Answer
Section for police inquest	CrPC 174
Section for magistrate inquest	CrPC 176
Section for dying declaration	Sec 32 Indian Evidence Act
Dying declaration recorded by	Magistrate (preferred), doctor, police
Bolam test year	1957 (UK)
Indian case on negligence	Jacob Mathew v State of Punjab (2005)
CPA landmark case for doctors	IMA v VP Shantha (1995)
IPC section for rash/negligent death	304A
Consent age for surgery	12 years (IPC)
Emergency consent exception	Sec 92 IPC (good faith)

♥ **Knowing the law protects your patients AND yourself, Sammy!**
A good doctor is also a wise medicolegal practitioner!